

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1250

Introduced by Guereca, 7; Raybould, 28.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to cities and villages; to authorize certain
- 2 cities and villages to sell waterworks, sewer systems, and water
- 3 systems as prescribed.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) A city of the primary class, city of the first
2 class, city of the second class, or village may sell or transfer any
3 waterworks, sewer system, or water system owned by such city or village
4 to an Indian tribe if the following requirements are met:

5 (a) The waterworks, sewer system, or water system must be located or
6 operating in its entirety within the tribal lands of such Indian tribe;
7 and

8 (b) The sale or transfer must be approved by the qualified electors
9 of the city or village at a general or special election described in
10 subsection (2) of this section.

11 (2) The governing body of the city or village seeking to sell or
12 transfer any waterworks, sewer system, or water system under this section
13 shall submit such question or proposition, in the usual manner, to the
14 qualified electors of such city or village at any general city or village
15 election or at any special city or village election and may submit the
16 proposition in connection with any city or village special election
17 called for any other purpose, and the votes cast thereon shall be
18 canvassed and the result found and declared as in any other city or
19 village election.

20 (3) For purposes of this section, Indian tribe means an Indian tribe
21 or band which is recognized by federal law or formally acknowledged by
22 the state.